a major transhipment terminal. It offers immense opportunities to further strengthen India's trading position in the world." (*See interview.*)

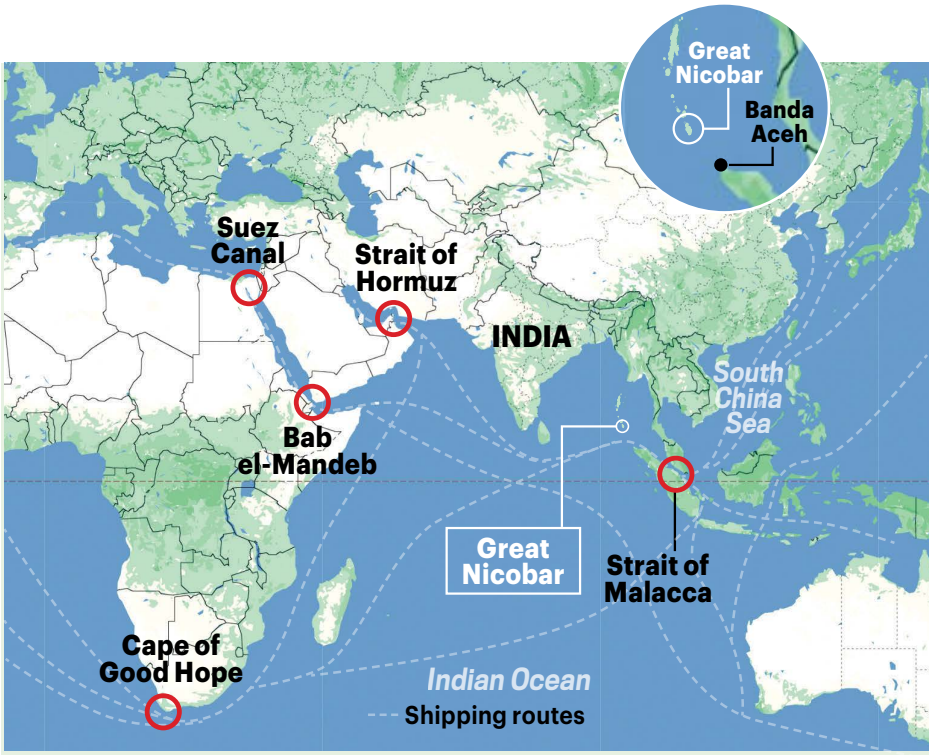
Legal and environmental experts, however, are scathing in their criticism. "There is nothing in the judgment to show that there was any application of technical knowledge or of subject experts who were part of the six-member [NGT bench]," says environmental lawyer Ritwick Dutta. "The whole case seems to have been dealt with as one of simple judicial review—to see whether a process was followed or not."

Dutta had, incidentally, co-authored the book *Supreme Court on Forest Conservation* with Yadav in 2004, much before he became environment minister. Their positions now diverge dramatically. "The difference between a judicial review, which a court does, and a merit review, which the NGT should have done," says Dutta, "is that the latter has expert members to examine technical aspects. The primary purpose of the NGT is to apply the precautionary principle, which is the foundation of environmental law,



"ICTT will make us a leading maritime superpower. We must develop facilities so that shipliners come and berth here. It will help us grow our income and create job opportunities"

SARBANANDA SONOWAL
Union minister of Ports, Shipping and Waterways



GALATHEA BAY TERMINAL

BIG TRANSHIPMENT BET

The proposed Rs 44,000-crore International Container Transhipment Terminal aims to reduce India's reliance on foreign ports and draw global traffic, but doubts remain

THE PROSPECTS

- Reduce dependence on hubs like Colombo and Singapore, which capture most of India's 3 mn TEU foreign transhipment volume
- Complement Vizhinjam International Seaport, which currently handles 1 mn TEU
- Compete for international East-West traffic by building a cost-effective regional hub

THE DOUBTS

- At Rs 18,000 crore for Phase 1, the project cost is significant, with returns unlikely to materialise quickly
- Expected traffic may not justify the investment or the potential ecological costs
- Unlike Colombo, the port site lacks an established urban centre, industrial base or logistics ecosystem to anchor a major terminal

to anticipate and prevent the cause of environmental degradation."

Other legal experts point to a broader concern: weak compliance with environmental safeguards attached to projects cleared by the tribunal. They note that the NGT itself is functioning at half its prescribed strength. While its order is a setback for environmentalists, they are now pinning their hopes on the Calcutta High Court, which is hearing several petitions against the project, including those filed by Kothari.

The project has also become a political flashpoint. In September last year, Congress leader Sonia Gandhi said the plan was being "insensitively pushed through, making a mockery of all le-